RAMBAM'S INTRODUCTION TO THE MISHNAH

Why Do the Sages Argue? The Five Categories of Torah Law

Rambam's Intro to the Mishnah, Part 3

Source: The Rambam's Introduction to the Commentary on the Mishnah (Rav Shilat's edition), Part 3 of the introduction

Shiur: Part 3 of the series on the Rambam's Introduction to the Mishnah, given by Dayan Daniel Kada on Zoom, Tuesday 20 May 2025

These notes are based on a machine transcript of the recording (no Sofer transcript exists for this class).

Tonight's Question

"You know the saying: **two Jews, three opinions.** How did this come about? Is it correct practice? **What can't be argued about, and what can?**"

Recap

Part	
1	The written Torah came **with an oral explanation**, taught Hashem → Moshe → Aharon → his sons → elders → people, **everyone four times**, with a final **37-day review**
2	A prophet has **no intellectual authority** over any Sage: **1,000 prophets vs 1,001 Sages, follow the Sages**. A prophet claiming *the law is X because I'm a prophet* is put to death. His one power: a **temporary**, non-idolatrous **suspension** of a mitzvah (Eliyahu's sacrifice at Carmel; *break Shabbat this Shabbat*)

That was a digression, to show that **the Oral Law is about transmission by Sages**, not prophetic authority. (Prophets were **part of** the chain, as we'll see tonight, but held **no superiority** in it.) Now: **how do disputes arise?**

Part 1: What Each Generation Handed On

When Yehoshua died, he passed on **three bodies** of Torah:

	Body	Dispute?
1	Everything **Moshe received from Hashem**	**Never**
2	What was **derived** since Moshe through the **13 principles**, **agreed by all**	No
3	What was derived **and disputed**, then **decided by majority** (say 10 against 9), passed on **with the ruling**	Disputed, then **decided**

Remember: Moshe received the **principles** and **some** details. Other details were left for **each generation's Sages** to derive.

"**Each generation more and more is derived**, because that's how Torah works. There's always more to learn, always more to extrapolate."

The chain

Yehoshua → **the elders** → **the prophets**, prophet to prophet → the **Men of the Great Assembly**, **120** of the greatest Sages of their time, who also derived new laws.

The last of them, **Shimon HaTzaddik**, also **Kohen Gadol**, about 2,100 years ago, counts as **the first of the Sages**. Prophecy ends; the dispute with the **Sadducees** begins; **the era of the Chachamim** starts. Then, generation after generation, to...

Part 2: Rabbeinu HaKadosh

Rabbi Yehudah HaNasi, called **Rabbeinu HaKadosh**, "our holy Rabbi":

Wisdom	The highest level
Torah and greatness together	The Gemara: from **Moshe to Rebbi** we never saw Torah and **prominence and wealth** combined in one person
Nasi	A prince, and **extremely wealthy**
Piety and humility	He distanced himself from physical pleasure. Dying, he **raised his ten fingers** and said: *Hashem is my witness I never enjoyed the world even with my little finger*
Language	Impeccable, unlike anyone's. His students learned **the meaning of words from his maidservant**

"To do a major project, it's not enough to be wise and have great language. **You also need prominence and authority.** His wealth helped him do it." (At least, that's the Rambam's implication.)

He **gathered everything** received from Moshe until his day: the accepted and the disputed.

"Isn't that incredible?"

The Rambam traces his chain: **Rebbi** ← **Shimon** his father ← **Gamliel** ← **Shimon** ← **Gamliel** ← **Shimon** ← **Hillel** ← **Shemaya and Avtalyon** ← **Yehudah ben Tabbai and Shimon ben Shetach** ← **Yehoshua ben Perachyah and Nittai HaArbeli** ← **Yosei ben Yoezer and Yosei ben Yochanan** ← **Antigonos** ← **Shimon HaTzaddik** ← **Ezra** ← **Baruch ben Neriyah** ← **Yirmeyahu**.

Here it stops. In the **Introduction to the Mishneh Torah** he continues: **Yirmeyahu** ← Tzefanyah ← Chabakuk ← Nachum ← Yoel ← Michah ← Yeshayahu ← Amos ← Hoshea ← Zecharyah ← Yehoyada ← **Elisha** ← **Eliyahu** ← Achiyah ← **David** ← **Shmuel** ← **Eli** ← **Pinchas** ← **Yehoshua** ← **Moshe** ← **Hashem**.

Rav Kook, opening schools as guest speaker, would line up about **a hundred students**, each one a generation: *you're Moshe, you're Yehoshua, you're Pinchas... and this is our generation.* "It's absolutely incredible that we can **literally trace back, generation to generation**."

Part 3: What No One Ever Disputed

Whatever came from Moshe has no dispute.

Verse	Received meaning	Disputed?
עין תחת עין	**Monetary** compensation	"We never heard any rabbi say it means a literal eye"
פרי עץ הדר	**Etrog**	Never
ענף עץ עבות	**Hadas** (myrtle)	Never
the) **וקצתה את כפה** (woman who grabs	**Money**	Never
who sins **is בת כהן burnt**	Only if **married or betrothed** (the plain verse doesn't say so)	Never

Then why does the Gemara search for sources?

Bava Kamma (start of chapter 8) spends **two full pages** on eight or nine derivations that *an eye for an eye* means money. **Sukkah** gives about **four** sources that *pri etz hadar* means etrog. **Why, if it's all from Moshe?**

To hang the law on the verse. "From an **educational** point of view, the best way to remember something is to connect it to a verse we know by heart."

- *Hadar* = **הדר**, "that **dwells**" on its tree **from year to year**, as the etrog does.
- Or **הדר על פני מים**, "that grows **by water**."

"Many fruits live from year to year. **They know 100% it's etrog.** They're arguing only about **which verse to hang it on**. *I say this mnemonic, you say that.*"

Part 4: Then What Is *Halachah leMoshe miSinai*?

The question: Tefillin must be black. No source in the Torah. (It isn't rabbinic either: wear non-black tefillin every day and **you've never fulfilled the mitzvah**. Rabbinic law like **muktzeh**, of course, has no verse.) The Sages call it **הלכה למשה מסיני**. **But by the Rambam's account, *everything* received is from Moshe at Sinai.** So why label only some?

The answer: Over time the Sages found **some anchor in the verse** for most received laws (*an eye for an eye* = money). For a few they **couldn't**: **not even a hint**. For black tefillin, the **only** authority is **Moshe**. **Those** are called *halachah leMoshe miSinai*.

The Rambam lists them, "before there was an encyclopedia, before you could Google": **about 25** across all of Shas. "*I think it's all of them, but perhaps I forgot one.*" Examples:

- **Tefillin are black.**
- **Every Torah "eating" means a *kezayit*.**
- **Sukkah walls:** halachically you may "**bend**" a wall, or **extend it up or down**.
- **Mikveh:** the rules of **interpositions** (*chatzitzot*).

Part 5: The Five Categories

The whole Torah divides into five parts.

#	Category	Example	Dispute?
1	Explanations **received from Moshe**, **with an anchor** in the verse	**Eye for eye = money; etrog**	**Never.** Once received generation to generation, no argument
2	***Halachah leMoshe miSinai***: received, **no anchor**	**Black tefillin; kezayit**	**Never**, and **forbidden to dispute**
3	**Derived** through the **13 principles**		**Yes**, and decided **by majority**
4	***Gezerot***: **fences** the Sages made to protect the Torah	**Muktzeh**; **poultry and milk**	**Yes**, and decided by majority
5	***Takkanot***: beneficial **enactments**	Studying each festival's laws **30 days before it**; the **enactments of Usha**; Ezra's **ten enactments**; **prozbul**; immersion for a *ba'al keri*	**Yes**

On category 3: "If it's received, I must accept it. **If you derived it, I can argue back**." That's why the Gemara always asks *what are they arguing about? What's the reason?* "I want to understand your rationale, because then I have the right to disagree."

On category 4: Rabbi Yosei HaGelili's town **ate poultry with milk**: he didn't feel the fence was needed. "*You feel it needs a fence; I'm the rabbi in my city, I feel it doesn't.*" Some fences were later **lifted**: there was a time **gentile oil** was forbidden, then abolished.

Gezerot vs takkanot: a ***gezerah*** is stronger, a decree or fence (*don't, or X may happen*). A ***takkanah*** is **good practice** instituted for our benefit, which became law **once accepted**.

Part 6: Why Disputes Multiplied

The Gemara (Sotah 47b): משרבו תלמידי שמאי והלל שלא שמשו כל צרכן, רבו מחלוקות בישראל ונעשית תורה כשתי תורות.

When the students of Shammai and Hillel multiplied who **had not served their teachers enough**, disputes multiplied, and **the Torah became like two Torahs.**

The wrong reading

Many people read this as applying to **categories 1 and 2**: students didn't listen properly, so **what was transmitted got garbled**, "**Chinese whispers**." *Moshe said black tefillin; the students half-heard; "black, grey, something..."*

The Rambam: people who say this don't understand. "One of the worst statements I've ever heard." It **kills the whole transmission**. **Categories 1 and 2 are intact and factual**, even when students didn't fully learn from their teachers.

The right reading: method, not memory

Disputes belong only to category 3. Why did they increase?

Two people with full intellectual ability, the same rigorous training from their teachers, given the same text to derive from: 99 times out of 100, they'll reach the same answer. There's human diversity, so some **minor** disagreements, which existed even between **Beit Hillel and Beit Shammai** and before, but the core derivations come out the same.

When that skill isn't properly honed, the derivations **diverge more and more**.

So there was far less dispute before Hillel and Shammai and their students (about 1,900 years ago), and **the further we go, the more**.

"Contrary to what we're told to believe: yes, difference of opinion can be good. But *we'll agree to disagree, I've got my opinion*: **an opinion reached without proper intellectual rigour means nothing to me.**"

A correction about today

"The amount of dispute in **contemporary halachah** increases each generation..." **The Rabbi retracted that wording:**

Today's Sages, even the greatest, aren't doing category 3 at all. Category 3 **ended with the Gemara**. Nor categories 1 and 2 ("they weren't with Moshe"), nor 4 and 5 (no authority for new *gezerot* and *takkanot*). **No rabbi can stand up and derive a new law from the verse.**

All they can do is apply the Talmud's derivations to new situations. Electricity on Shabbat or Yom Tov: "I can't go to the Torah and derive what it says about electricity. **I don't have the authority.** All I can do is look in the Talmud and extrapolate from its extrapolations."

Part 7: Then Why Does the Mishnah Record Minority Views?

If the law follows the majority, why did **Rebbi**, whom the Rambam praises so highly, write *the Sages say X, Rabbi Meir says Y*? Why not just the final law?

"We touched on this in the **letter to Rav Pinchas HaDayan**." Pinchas asked why the **Mishneh Torah** gives no dissenting views, *when Rebbi did*.

The answer: it took time for the halachah to crystallise.

Poultry and milk. Most Sages made the fence; **Rabbi Yosei HaGelili** didn't. Rebbi writes it's **forbidden**. A **grandson of someone from Rabbi Yosei HaGelili's town** walks around eating chicken with milk, following his town's custom (**minhag was much stronger then**). **Is he doing wrong? No**: he's under **Rabbi Yosei HaGelili's authority**. So the Mishnah tells you: *there is such an opinion; we don't follow it; but if you meet such a person, he has a tradition and can't be criticised.***

Today, no community traces back to Rabbi Yosei HaGelili: "someone who says *I eat chicken and milk because I follow Rabbi Yosei HaGelili*: **you throw him out.**" Already in the Rambam's time no one could claim that chain, "**so there's no point in my Mishneh Torah** writing opposing views."

Summary

1. **Each generation passed on three bodies:** what came **from Moshe**; what was **derived and agreed**; what was **derived, disputed and decided by majority**.
2. **The chain:** Moshe → Yehoshua → elders → prophets → **Great Assembly** → **Shimon HaTzaddik** (first of the Sages) → … → **Rabbeinu HaKadosh**, uniquely wise, wealthy, pious and eloquent, who gathered it all. **Rav Kook's line of a hundred students.**
3. **Received laws are never disputed** (eye for eye = money; etrog; hadas). The Gemara's many "sources" just **anchor** them to verses, for memory.
4. ***Halachah leMoshe miSinai*** = received laws with **no anchor at all** (black tefillin, kezayit): about **25**, all listed by the Rambam.
5. **Five categories:** received with anchor; received without; **derived**; ***gezerot***; ***takkanot***. Only **3–5** can be disputed, decided by majority.
6. **Disputes multiplied not from "Chinese whispers"** ("one of the worst statements") but because **the skill of derivation** weakened. Same method → same answer, 99 times in 100.
7. **No one derives new law today**; we apply the Talmud's derivations (electricity).
8. **The Mishnah records minority views** because communities still followed them; **that's long over**, so the Mishneh Torah doesn't.

Coming Up

Next week: more on dispute, and the **structure of the Mishnah**.

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